

Dinesh @ Umesh v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 20 February 2023 · Writ - C No. 5685 of 2023 · **Theft-dues notice withdrawn; writ disposed for a fresh Code hearing.**

HEADNOTE

Respondent no. 2 withdrew the demand notice dated 2 January 2023 for recovery of electricity dues in a theft case and stated that a fresh order would be passed after hearing the petitioner. The Allahabad High Court disposed of the writ with liberty to the respondents to pass that fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. Theft liability and the quantum of dues were not decided.

FACTUAL SUMMARY

The petitioner, Dinesh @ Umesh, challenged a demand notice dated 2 January 2023 issued by respondent no. 2 for recovery of electricity dues said to arise from theft of electricity. Counsel for respondent no. 2 informed the Allahabad High Court that the notice had already been withdrawn and that a fresh order would be made only after the petitioner was given an opportunity of hearing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

Withdrawal of theft-dues notice; fresh order under the Supply Code

HOLDING

Once the licensee withdraws a demand notice for recovery of electricity dues in a theft case and states that a fresh order will follow a hearing, the writ challenging that notice is disposed of, with liberty to pass the fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 1

FLAG No clause number is cited; the order refers only to the procedure prescribed under the U.P. Electricity Supply Code, 2005.

PRINCIPLE TAGS

fresh-order-supply-code-procedure After the licensee withdrew a theft-recovery demand notice, the writ was disposed of with liberty to pass a fresh order only after hearing and strictly under the procedure in the U.P. Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS LIABLE FOR THEFT OF ELECTRICITY AND FOR ANY DUES ON A FRESH ASSESSMENT.

The impugned notice was withdrawn. The court left the respondents to pass a fresh order after hearing. ¶ 1